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No. I.

A TREATISE of the COURT of STAR CHAMBER*.

PART THE FIRST.

§. I. THE DIVISION OF THE TREATISE.

I CANNOT but with admiration reverence the grave judgment of the sages of the common law of England who have been abstinent in publishing their meditations and arguments in their professions, either holding it as a flag of vain-glory unworthy their gravity, or as one of Lycurgus' maxims, or their ancestors' Druides' precepts, *mandare memoria, et disciplinæ potius quàm scriptis*; unlike to this cracking age, when all men in all professions *quicquid subito crepant omnino à statu Apollinis credunt*; who, for fear of burying their talent, post to the press to publish to others that which they well understand not themselves; it being assuredly no matter of necessity to publish the rea-

* A MS. copy of this Treatise, Harl. MSS. No. 1226. contains the following memorandum:

"This Treatise was compiled by William Hudson, of Gray's Inn, esq. one very much practised, and of great experience in the Star Chamber, and my very affectionate friend. His son and heir, Mr. Christopher Hudson (whose hand writing this book is), after his father's death, gave it to me 19 Dec. 1635.

"JO. FINCH,"

Ch. Just. C. P. 11. Car. 1.

Ld. Keep. Gr. Seal, 15. Car. 1.

Lord Mansfield quotes this MS. in the Case of the King v. Wilkes, (4. Burrow 2554.) and states the passage relating to the power of the king's attorney general, which is hereafter pointed out in PART III. §. 4.

PART I.

sons of the judgment of the law, or *apices* or *fictiones juris* to the multitude, who are apt to furnish themselves with shifts to cloak their wickedness, rather than to gain understanding to further the government of the Commonwealth: for surely few men would be ruined by dishonest means, if men knew not how to cover their dishonesty under some colour of law or justice; a kind of ignorance for which an old historiographer commended the Scythians, affirming, that *plus apud illos profuit ignorantia quam apud Græcos divinarum atque humanarum rerum scientia*. But, amongst that which is written of the common laws of England, I find little mention made either in the reports or treatises of the law concerning the great and high Court of Star Chamber, except now and then (*sparsim*) some one or two cases in an age; mentioned rather, as it seemeth, to manifest to posterity that there was such a court, than to enlighten the world with the radiant beams of those bright shining stars, as the cynosure to steer and direct a sure course of the happy government of this state in peace and glory. Only sir *Thomas Smyth*, in his "*Commonwealth*," hath glanced by it; and mr. *Lambert*, the great antiquary of this time, hath taken great pains to set forth the lawful power, authority, and jurisdiction of this court; and mr. *Crompton* hath collected many particular cases there properly examinable.

BUT by reason that I conceive mr. *Lambert* hath erred in some things, and the rest are defective in that which is most material, I will, by the help of Almighty God, endeavour, with as much brevity as I can, to set forth, as in a model, the composition and jurisdiction of that high court, so far forth as, by my weak observations and labours for the space of twenty years, I could attain unto. And to this end and purpose, that I may more plainly express myself, I will divide the Treatise into Three several and distinct Parts.

1. THE First shall be concerning the court itself; the judges, officers, and ministers thereof.

2. THE Second, concerning the jurisdiction of the same, and the causes which are there handled and properly determinable.

3. THE Third, and last, concerning the course of the same court; in what form causes are proceeded in, and there determined.

THE last whereof I should be more bold to enlarge upon, for that no man heretofore hath ever taken any pains or regard to make observation of the same more than for his own private use and particular practice.

§. II. THE COURT OF STAR CHAMBER IS A SETTLED ORDINARY COURT OF JUSTICE.

AND in the FIRST PART of this TREATISE concerning the Court of Star Chamber, I will content myself to handle, amongst other things which might fitly be debated, these heads: First, That it is an ordinary court of justice. Secondly, The name of the court. Thirdly, The antiquity thereof. Fourthly, The dignity thereof. Fifthly, The preface thereof. Sixthly, The officers thereof.

AND concerning the first point, I shall meet with two several contentions.

1. THE one is, that this court is but an usurpation of monarchy upon the common law of England, and in prejudice of the liberties granted to the subject by the Great Charter, especially where persons are produced, without legal prosecution to punishment, at the bar without oath or testimony.

2. THE other, that it is no settled ordinary court of judicature, but only an assembly for a consultation at the king's command, upon some urgent occasions, in cases where all other courts want power for want of law to warrant them, or have no weight sufficient to poise the question.

PART I.

CONCERNING the first, I well remember that mr. *Garew, Pasch. 1. Jacobi*, being produced *ore tenus* for an audacious part in shutting up his parish-church-door, denying the Common Prayer to be used according to the form established in the reign of queen Elizabeth, did, at his defence of the crime, deliver into court that part of *Magna Charta*, *Nullus liber homo capiatur vel imprisonetur aut disseisietur de libero tenemento suo vel de libertatibus vel liberis consuetudinibus suis, vel utlagetur vel exuleter aut aliquo modo distruatur, nec super eum ibimus nec super eum mittemus nisi per legale iudicium parium suorum, vel per legem terræ*. But the grave lord keeper *Egerton*, well weighing that it was not only necessary to proceed to the censure of the gentleman at that time, but to give satisfaction to the world that the proceedings in that kind were just and legal, did learnedly declare the true meaning of that law, shewing the disjunctive *per legale iudicium parium suorum*, which was by indictment, or some writ original, *vel per legem terræ*.

AND that the law of England had always as well an extraordinary and expeditious court to conserve the peace of the kingdom, as an ordinary form of prosecution, where the bleeding state required not speedy remedy; and for the course of calling men to answer to a suggestion in that court by privy seal or *subpœna*, and proceeding thereupon in the antient form; mr. *Keeble, in temp. H. 7.* in his reading upon this law plainly declareth, that a privy seal is in the nature of an original writ, and so that course of proceeding not dissonant from the act of parliament.

THESE judicial opinions, both of antient and modern times, together with the continual usage in the reign of all the kings of this land in succession; and that the king, who is the fountain of all justice, must necessarily, by the law, have power to execute justice himself, which he doth most properly in this court, as shall be hereafter declared at large; shall be sufficient to satisfy

satisfy every indifferent man concerning the first point, that this court hath not encroached upon the common law, or any way opposeth the liberties of the Great Charter.

FOR the second point, I would fain know what there wanteth in this court to decypher it to be an ordinary court of judicature which any other court at Westminster hath? It hath judges, ordinary process, officers, a place certain, a continued session in the term time, and day given over from time to time. So you shall find it in the reign of *H. 7.* and *H. 8.* as well as now and then more continual without days of intermission, whereas now the court sitteth ordinarily but two days in the week, the same then sitting, for the most part, every day of the week.

BUT it is objected, that the usual courts of justice do only sit in the term time, and this court sitteth at the king's pleasure, as well in vacation as term; for so it did at Davison's sentence in the reign of queen Elizabeth, and in the great Dutch cause in the reign of our now sovereign; which manifesteth it to subsist rather by extraordinary sovereignty than ordinary course. To this I answer, that the extraordinary prerogative which that court hath, taketh not away the ordinary stability; for the chancellor of England may determine cases in the court of chancery in the vacation time as well as in the term. And the chancellor and lord keeper have ever so done; yet no man will deny the court of chancery to be an ordinary court of justice.

AGAIN, It is objected, that the pleadings in the court and the records thereof are not tied unto any such formality, or preserved with so much care, nor entered upon any adjournment and continuance with so much strictness and diligence, as other courts at Westminster; and therefore it seemeth, that this great court hath rather been as a committee for such great causes as it pleased the king than as a court of ordinary justice, which is ever tied to form, as to the chief principle which giveth it being.

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Whereunto I give this answer: That there is no court in Westminster-hall which doth so sharply correct the neglect of convenient form in him which complaineth, as this court, thereby to put sufficient certainty to the matter fit for the judgment of this court, discharging the parties with costs double to expence. But the gravity of this court condemneth to give allowance to every cavillation, and that upon great and good grounds; for it would but protract and delay him which complaineth, and protect him that is an offender, by which the Commonwealth should receive prejudice; for *interest reipublicæ ne delicta maneant impunita*: and therefore the lord chancellor Egerton, with great wisdom, denied to give allowance to the frivolous exceptions to bills at the hearing, as injurious to the subject and prejudicial to the state; of which I shall more fitly speak hereafter.

BUT for the custody of records, howsoever in these latter times they may be neglected, for that some great men have delivered their opinions that it were no great matter whether any pleading remained or not after the cause heard, because the judgment cannot be reversed by error; and causes have, upon deliberation, been ordered to proceed to hearing upon copies, the original being withdrawn by neglect, and no care taken to have them engrossed *de novo*, and orderly filed: so also the very sentences by which severe punishment hath been executed upon offenders have, by mere neglect, been wholly left unentered; so that there is no record to justify the inflicting of that punishment: howsoever, I say, this negligence hath crept into the court of very late time, either in mr. Mills's age, or since the office hath been executed by many deputies, one being thrust out by that time he understandeth the duties of the place, and another put in altogether unexperienced; yet in former times the judgments before the king and his council were kept in such care, and remain in such order, as no records of
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the kingdom are of more use than those remaining in the Tower of London; many particulars of which I shall have occasion to remember hereafter.

AND for the continuances, whosoever will be pleased to look over the records of the reigns of king *H. 7.* and *H. 8.* they shall find all the rules and orders there entered in Latin, and the continuances of cases entered from term to term, sometimes with a clause of assent of the parties, sometimes *per ordinem cancellarii*. And in those times matters of smallest moment were observed with a great deal of state; as, that the appearance was recorded before the lord chancellor and president of the council; sometimes in the chancellor's house, sometimes in the parliament chamber, sometimes in the inner star chamber, sometimes in the court; all which gave majesty to the court and terror to the offenders. It is now descended to so mean a step as that the appearance is taken only by an inferior clerk, and not so much as by the deputy clerk of the court: a gross error, and first used by mr. Mills in his age, by reason the other hath part of the fee, and is since carried as a particular office, and executed by an inferior clerk, wherein there is no observation of state or majesty worthy of the dignity of that great high court.

BESIDES, one great inconvenience thereby ensueth, for that in great offences the offender *flagrante crimine* is stricken with amazement, and then coming before a grave and reverend person, truth is easily won from him, which after the party be hardened will never be gained. And this I have observed upon perusal of the records of *H. 7.* to have been before the then lord chancellor, as it is to be seen in one *Maylin's* case about the 11th of *H. 7.* and thereupon the party was bound to appear *de die in diem*, or confess the offence; and that this court hath had a certain place or residence in *Camera Stellata*, than which no court of England can be more ascertained in place. And this shall suffice in this short